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Appalachian Trail corridor constitutes nearly 240,000 acres. NPS, Land Resources Div., Acreage Reports, Listing of Acreage, p. 1 (Dec. 31, 2019) (NPS, 2019 Acreage Report). The Forest Service concurs. See Dept. of Agriculture, Revised Land and Resource Mgmt. Plan—George Washington Nat. Forest 4–42 (2014) (Forest Service Land Plan). In its own management plan, the Forest Service explained that the Secretary of the Interior “administer[s]” in the George Washington National Forest “about 9,000 acres.” *Ibid.* Acres of land, that is.

As federally owned land administered by the Park Service, the Trail segment that Atlantic aims to cross is exempt from the Mineral Leasing Act’s grant of right-of-way authority.

II

The Court resists this conclusion for three principal reasons. Each tries to detach the Appalachian Trail from land, but none adheres to the plain text and history described above.

A

First, the Court posits that the Forest Service granted the Park Service only an “easement” for the Trail’s route through the George Washington National Forest. See *ante*, at 613–616. Because private-law “easements are not land,” the Court reasons, nothing “divest[ed] the Forest Service of jurisdiction over the lands that the Trail crosses.” *Ante*, at 613, 616.

That reasoning is self-defeating. Despite recognizing that the Park Service “administers the *Trail*,” the Court insists that this administration excludes “the underlying land” constituting the Trail. *Ante*, at 617. But the Court does not disclose how the Park Service could administer the Trail without administering the land that forms it.

Neither does the Court explain how the Trail could be a unit of the Park System if it is not land. The Court declares that the Trail’s status as a System “‘unit’” does not “indi-

cat[e] that the Trail and the land are the same.” *Ante*, at 615. But the Court cites no statutory authority for this view. Nor could it. The Organic Act says the opposite: A “‘System unit’” is by definition “land” or “water.” 54 U.S.C. §§ 100102(6), 100501. Unless the Court means to imply that the Appalachian Trail is water, the Trail must be land in the Park System. Indeed, the Court’s atextual reading unsettles much of the Park System as we know it. Other System units include the Booker T. Washington National Monument, George Washington’s birthplace, the Harriet Tubman Underground Railroad National Historical Park, the Blue Ridge Parkway, and the Golden Gate National Recreation Area. See, *e.g.*, Budget Justifications, ONPS–89, –92, –109; accord, NPS Index, at 32, 61, 85, 104, 105. These monuments, houses, roads, and recreational areas are just as much “land” in the Park System as is a foot trail worn into the earth.

The Court’s analysis of private-law easements is also unconvincing. In the Court’s words, a private-law easement is “a limited privilege” granted to “a nonowner” of land. *Ante*, at 613; see also 613–614 (adding that “the grantor of [an] easement retains ownership” over the land and that “easements are not land, they merely burden land that continues to be owned by another”). But as the Court recognizes, “the Federal Government owns all lands involved here,” *ante*, at 614, so private law is inapposite. Precisely because the Government owns all the lands at issue, it makes little sense to ask whether the Government granted itself an easement over its own land under state-law principles. Between agencies of the Federal Government, federal statutory commands, not private-law analogies, govern.

In any event, the Trails Act provides that the “rights-of-way” for the Appalachian Trail “shall include lands protected for it” where “practicable.” 16 U.S.C. § 1244(a)(1); cf. § 1246(d) (listing the “areas . . . included” in a right-of-way); § 1246(e) (providing that the Government may “acquire such lands or interests therein to be utilized as segments of” a

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trail and that “lands involved in such rights-of-way should be acquired in fee”).⁹ Thus, even with a so-called “easement” through a federal forest, the Park Service still administers land “acquire[d]” and “protected” for the Trail.¹⁰ That is why the Park Service refers to the Trail as a “swath of land,” App. 97; why the Forest Service admits that the Park Service administers those “acres,” Forest Service Land Plan 4–42; and why the Secretary of the Interior has authority to grant rights-of-way “under” the Trail’s surface, § 1248(a).

Tellingly, the Court recognizes that § 1248(a) “extends a positive grant of authority to the agency responsible for the Trail.” *Ante*, at 615, n. 3. Indeed. That only scratches the surface. The Park Service may control what happens under the Trail consistent with “units of the national park system.” § 1246(i). The Park Service also determines which “uses along the trail” to permit, § 1246(c), and provides for the Trail’s “protection, management, development, and administration,” § 1246(i). But under the Court’s atextual reading of the relevant statutes, the agency tasked with protecting

⁹The Court maintains that these provisions are also “consistent with” its private-law paradigm, *ante*, at 615, but private law does not override the plain text of the relevant statutes. See Part I–A, *supra*. The Court simply works backwards from state law, even though statutory interpretation is supposed to start with statutory text. See, e.g., *Rotkiske v. Klemm*, 589 U. S. 8, 13 (2019). Indeed, the Court offers almost no analysis on the language of the General Authorities Act or the Park Service Organic Act.

¹⁰A right-of-way may include not just a right of passage, but also the land itself. See, e.g., 16 U. S. C. § 521e(3) (providing that certain “rights-of-way” are “lands”); Black’s Law Dictionary 1587 (11th ed. 2019) (“right-of-way” can refer to “[t]he strip of land”); Black’s Law Dictionary 1489 (4th ed. 1968) (similar); see also *New Mexico v. United States Trust Co.*, 172 U. S. 171, 181–182 (1898) (discussing these two definitions and explaining that the “intention of the legislature” controls). Although the Court quotes *New Mexico* for the proposition that a “right of way” cannot constitute “possession of the land itself,” *ante*, at 616, n. 4, that passage had to do with a “naked right of way,” i. e., a simple right of passage, 172 U. S., at 184 (emphasis added).

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the Trail (and empowered to grant rights-of-way under it) could be excluded from determining whether a pipeline bores across the Trail. The Court's interpretation means that the Mineral Leasing Act would not even stop Atlantic from building a pipeline on top of an undisputed unit of the Park System. Cf. *ante*, at 623–624, n. 7. That cannot be right.

The Court also appears to assume that the Park Service's administrative jurisdiction over lands making up the Appalachian Trail must be mutually exclusive with the Forest Service's jurisdiction. See *ante*, at 613–616 (focusing on whether “jurisdiction over the lands” making up the Trail was “transferred,” “convert[ed],” or “divest[ed]”). But this is not a zero-sum inquiry. The question is “not whether those portions of the [Appalachian Trail] were *removed* from the George Washington National Forest; the question is whether they were *added* to the National Park System.” Brief for Natural Resources Defense Council et al. as *Amici Curiae* 2. As explained above, the lands making up the Appalachian Trail were indeed added to the National Park System.

That the Trail may fall within both the Forest System and the Park System is not surprising. The Trails Act recognizes that two agencies may have overlapping authority over the Appalachian Trail. See 16 U. S. C. § 1244(a)(1) (giving the Secretary of the Interior administrative authority “in consultation with the Secretary of Agriculture”); § 1246(a)(2) (“Development and management of each segment of the National Trails System shall be designed to harmonize with and complement any established multiple-use plans for that specific area”). So too the Mineral Leasing Act contemplates that multiple agencies may share authority over federally owned land implicated in proposed rights-of-way. See 30 U. S. C. § 185(c); see also n. 2, *supra*. The Court appears to recognize this point, see *ante*, at 615, n. 3, but does not follow it to its logical conclusion: that land may be in both the Park Service and the Forest Service and thus excluded from the Mineral Leasing Act's right-of-way authority. The Mineral

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Leasing Act's carveout simply asks whether the federally owned land is in the Park System at all. See § 185(b). If it is, then (as the parties recognize) the Mineral Leasing Act does not permit pipelines to cross that park land.

The Court also cites a 1983 amendment to the Trails Act for the proposition that the lands making up the Appalachian Trail are not administered by the Park Service. See *ante*, at 623 (citing 16 U. S. C. § 1246(a)(1)(A)). This provision states that “[n]othing” in the Trails Act “shall be deemed to transfer among Federal agencies any management responsibilities . . . for federally administered lands which are components of the National Trails System.” § 1246(a)(1)(A); see also § 207, 97 Stat. 45–46. It does not aid the Court’s analysis.

For one thing, § 1246(a)(1)(A) undercuts the Court’s distinction between a trail and land: The statute equates “components of the National Trails System” like the Appalachian Trail with “lands.” *Ibid.*; see also § 1241(b) (Appalachian Trail is a “componen[t]” of the National Trails System). For another, in relying on this provision, the Court elides two terms of art: “administering” land and “managing” it. See *ante*, at 617, 623. “Trail administration is distinguished from on-the-ground trail management.” NPS, Reference Manual 45, at 21.¹¹ Section 1246(a)(1)(A) itself differentiates the terms because it uses both, but disclaims only the transfer of “management,” not “administration.” When, as here, ““Congress includes particular language in one section of a statute but omits it in another,”” this Court “generally

¹¹ The Park Service Reference Manual defines “Administration” as a term referencing the agency broadly “responsible for Federal funding and staffing necessary to operate the trail and exercising trailwide authorities from the [Trails Act] and [the administering agency’s] own organic legislation.” NPS, Reference Manual 45, at 8; see also *ibid.* (“Trail administration provides trailwide coordination and consistency”). “Management,” by contrast, refers to localized matters like “local visitor services,” “law enforcement,” “site-specific compliance,” “site interpretation,” “trail maintenance” and “marking,” “resource preservation and protection,” and “viewshed protection.” *Id.*, at 10.

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presumes” that “Congress “‘intended a difference in meaning.’”” *Maine Community Health Options v. United States*, 590 U. S. 296, 314 (2020).

This distinction between administration and management tracks the Park Service Organic Act. The Organic Act defines the Park System as land “administered” by the Park Service. 54 U. S. C. §100501; see also §100502 (reflecting difference between administration and management). Similarly, the rest of the Trails Act differentiates the two terms by giving the Secretary of the Interior (and by extension the Park Service) power to “administe[r]” the lands making up the Appalachian Trail, §5(a)(1), 82 Stat. 920, in consultation with other parties about proper Trail “management,” §7(i), *id.*, at 925. Even the Mineral Leasing Act echoes this difference by equating land “under the jurisdiction of [a] Federal agency” with land “administered” by that agency. 30 U. S. C. §§185(c)(1), (2). The Court may be right that the Park Service “‘provide[s] for’ the maintenance of the Trail” while the Forest Service “*performs* the necessary physical work,” *ante*, at 617, but that only punctuates the contrast between administration and management. See, *e. g.*, NPS, Reference Manual 45, at 8, 10, 21. There is no disputing that the Park Service administers the Appalachian Trail, even if the Forest Service manages it.¹²

At bottom, 16 U. S. C. §1246(a)(1)(A) does not change the fact that the Park Service administers the Appalachian Trail as a unit of the Park System. Nor does it supersede the Park Service Organic Act’s definition of Park System lands or the Mineral Leasing Act’s exclusion of those lands.

¹² Mere months after Congress had enacted §1246(a)(1)(A) to clarify that it had not transferred “management responsibilities,” the Park Service issued a final rule for “General Regulations for Areas Administered by the National Park Service,” reaffirming that the Appalachian Trail was land in the Park System. See 48 Fed. Reg. 30252. That agency action makes little sense under the Court’s view.

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B

Second, the Court maintains that Congress should have used “unequivocal and direct language” had it intended for the Trail to be land in the Park System. *Ante*, at 618. The Court cites the Wild and Scenic Rivers Act (Rivers Act) and the Blue Ridge Parkway statutes, noting that Congress “failed to enact similar language in the Trails Act.” *Ante*, at 622. But as the Government explained, “[m]agic words such as ‘transfer jurisdiction’ are unnecessary.” Reply Brief for Federal Petitioners 9 (citation omitted).

Indeed, neither example lends the Court much support. Certainly the Rivers Act, 82 Stat. 906, stated that any component of the Rivers System would “become a part of” the National Park System. § 10(c), *id.*, at 916. But this shows that Congress has many means to make land a unit of the Park System. Congress charted another path for the Appalachian Trail by enacting the General Authorities Act, a statute just as explicit as the Rivers Act. Again, it was after the Park Service had become the Trail’s “land administering bureau,” 34 Fed. Reg. 14337, that Congress provided that “‘any area of land . . . now or hereafter administered by the Secretary of the Interior through the National Park Service’” is land in the Park System, § 2(b), 84 Stat. 826; see also 54 U. S. C. §§ 100102(2), (6), 100501. Resembling the Rivers Act, the General Authorities Act unambiguously provided that a component of the Trails System would become land in the National Park System.

The Blue Ridge Parkway statutes also undermine the Court’s conclusion. The Court cites a 1952 statute and some more recent laws, see *ante*, at 618, but the enactments that originally created the Blue Ridge Parkway did not include language about “transferring” land from one agency to another. Rather, they stated that the parkway “shall be administered and maintained by the Secretary of the Interior through the National Park Service” and be “subject to” the

Park Service Organic Act, even though the relevant lands included national forests. See 49 Stat. 2041; ch. 277, 54 Stat. 249–250; NPS, Blue Ridge Parkway: Virginia and North Carolina Final General Management Plan 12 (2013). The only salient difference between the original Blue Ridge Parkway statutes and the Trails Act is that, for the latter, Congress took an additional step by enacting the General Authorities Act.

For similar reasons, it is not significant that the National Trails Act allowed the Secretary of the Interior to decide which agency in the Interior Department would administer the Appalachian Trail. Cf. *ante*, at 620–623. That was a choice for Congress and the Executive Branch, not the Judiciary. See § 5(a), 82 Stat. 920. More important, this designation had occurred before Congress enacted the General Authorities Act and amended the Mineral Leasing Act, and Congress was aware that the Park Service had already been selected to administer the land. The Court is therefore incorrect to suggest that Congress altered a regulatory scheme “through delegation.” *Ante*, at 621. Congress did so instead explicitly through legislation and ratification.

C

Last, the Court objects on policy grounds that hewing to the statutes’ plain meaning would have “striking implications for federalism and private property rights.” *Ibid.*

Not so. For starters, the pertinent provisions under the Mineral Leasing Act apply only to “lands owned by the United States.” 30 U.S.C. § 185(b)(1). That statute does not address a State or private landowner’s ability to grant rights-of-way for pipelines. Congress, moreover, already addressed the Court’s concerns. The Trails Act prescribed the means by which nonfederal “land necessary for [the Trail] may be acquired”: by voluntary arrangements or, if “all voluntary means for acquiring the property fail,” through “condemnation proceedings.” *Preseault v. ICC*, 494

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U.S. 1, 5, n. 1 (1990) (citing 16 U.S.C. §§ 1246(e), (g)). “Where practicable,” the Trails Act incorporated pre-existing cooperative agreements. § 1244(a)(1). And as the Park Service has explained, it took the cooperative path to acquire private and state land for the Trail. See, *e.g.*, NPS, Reference Manual 45, at 41 (extolling the Trail’s cooperative agreements that became “a laboratory for developing sustainable partnerships that can care for and protect interstate trails”).

True, that the Appalachian Trail is land in the Park System means the Park Service has some power to regulate non-federal property. But that authority is not new. For decades the Park Service has regulated waste disposal on “all lands and waters within the boundaries of all units of the National Park System, whether federally or nonfederally owned.” 36 CFR § 6.2 (1995). It also has power to regulate the entire Appalachian Trail, including lands that the Government does not own. 16 U.S.C. § 1246(c) (requiring private landowners to act “in accordance with regulations” governing “the use of motorized vehicles” on the Trail).¹³

¹³The Court predicts that “difficulties” would arise if the Trail were land in the Park System, asserting that the Park Service’s “‘administrative’” authority could allow the Government to “displace” state laws providing for Trail maintenance. *Ante*, at 621–622, n. 6. The Court’s concerns do not follow. Even with the Supremacy Clause, U.S. Const., Art. VI, cl. 2, federal and state laws can (and do) coexist in this context and myriad others. See, *e.g.*, NPS, Reference Manual 45, at 8 (Park Service’s “Trail administration provides trailwide coordination and consistency” among “government agencies, landowners, interest groups, and individuals”). The Court’s core objection seems to be that the Park Service could “gain power over numerous tracts of privately owned and state-owned land.” *Ante*, at 621, n. 6. But it already did. See 16 U.S.C. § 1246(c); 54 U.S.C. § 100751(a); Pub. L. 91–383, §§ 1, 2(b), 84 Stat. 825–826; 36 CFR § 7.100; 67 Fed. Reg. 8479 (2002); 48 Fed. Reg. 30252; see also *Sturgeon v. Frost*, 587 U.S. 28, 38 (2019). Despite that fact, none of the Court’s supposed “difficulties” has arisen. Compare *ante*, at 621–622, n. 6, with, *e.g.*, NPS, Reference Manual 45, at 41 (explaining complementary “Federal, State, and nonprofit roles” in the Trail’s successful “management”). Rather, as the Court points out, the Park Service has not fully exercised its authority,

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Nor is the Park Service's authority over Trail lands remarkable. Uniform regulatory power is a feature of a unified National Park System. After all, Congress designed the Park System to "expres[s] a single national heritage" and to "conserve" the country's "scenery, natural and historic objects, and wild life" for "the common benefit of all the people of the United States." 54 U.S.C. §§ 100101(a), (b). Thus, "the Secretary [of the Interior], acting through the Director of the Park Service, has broad authority under the National Park Service Organic Act . . . to administer both lands and waters within all system units in the country." *Sturgeon v. Frost*, 587 U.S. 28, 38 (2019); see also § 100751(a) (Secretary of the Interior "shall prescribe such regulations as [he or she] considers necessary or proper for the use and management of System units"). Because "[t]hose statutory grants of power make no distinctions based on the ownership of either lands or waters," 587 U.S., at 38, "park boundaries can encompass both federally and nonfederally owned lands and waters," all "subject to [Park] Service regulations," *id.*, at 61 (SOTOMAYOR, J., concurring).¹⁴

applying fewer regulations on private lands than on federal lands out of respect for private interests. 67 Fed. Reg. 8480. That the Park Service chooses not to regulate, however, does not mean it is powerless to do so.

In any case, the Court's policy objections do not bear on the statutory question here. And the Court's citations only confirm that the Trail is among the Park Service's "administered lands." *Id.*, at 8479. As those sources show, the Park Service's "general" regulations for lands "administered by the National Park Service" apply to Trail segments under the agency's "primary land management responsibility." 48 Fed. Reg. 30252–30253; see also *id.*, at 30253 (noting that because the Park Service "cannot abrogate [its] responsibility by excluding areas of the National Park System from coverage," it may also impose "special" regulations applicable to private lands). Those authorities thus reveal that administration differs from management, and that either way the Trail segment at issue is land in the Park System.

¹⁴ If any Park Service regulations impair state or private-property rights, the Takings Clause and the Trails Act provide for compensation in appropriate cases. See U.S. Const., Amdt. 5; 16 U.S.C. §§ 1246(e), (g).

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Despite all this, the Court insists that Congress use “exceedingly clear language” when it wishes “to significantly alter the balance between federal and state power and the power of the Government over private property.” *Ante*, at 622. But Congress did. It used language so clear, in fact, that every year the Park Service provides an acreage report listing state and private land as part of the Appalachian Trail system unit. Last year, the Park Service’s report listed that the Trail system unit comprises 58,110.94 acres of “Non-Federal” land, including 8,815.98 acres of “Private” land. See NPS, 2019 Acreage Report.

* * *

Today’s outcome is inconsistent with the language of three statutes, longstanding agency practice, and common sense. The Park Service administers acres of land constituting the Appalachian Trail for scenic, historic, cultural, and recreational purposes. §§ 3(b), 5(a)(1), 82 Stat. 919–920; 34 Fed. Reg. 14337. “[A]ny area of land” so “administered” by the Park Service is a unit of and thus land in the National Park System. 54 U. S. C. §§ 100102(6), 100501. The Mineral Leasing Act does not permit natural-gas pipelines across such federally owned lands. 30 U. S. C. § 185(b). Only Congress, not this Court, should change that mandate.

I respectfully dissent.

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BOSTOCK *v.* CLAYTON COUNTY, GEORGIACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 17–1618. Argued October 8, 2019—Decided June 15, 2020*

In each of these cases, an employer allegedly fired a long-time employee simply for being homosexual or transgender. Clayton County, Georgia, fired Gerald Bostock for conduct “unbecoming” a county employee shortly after he began participating in a gay recreational softball league. Altitude Express fired Donald Zarda days after he mentioned being gay. And R. G. & G. R. Harris Funeral Homes fired Aimee Stephens, who presented as a male when she was hired, after she informed her employer that she planned to “live and work full-time as a woman.” Each employee sued, alleging sex discrimination under Title VII of the Civil Rights Act of 1964. The Eleventh Circuit held that Title VII does not prohibit employers from firing employees for being gay and so Mr. Bostock’s suit could be dismissed as a matter of law. The Second and Sixth Circuits, however, allowed the claims of Mr. Zarda and Ms. Stephens, respectively, to proceed.

Held: An employer who fires an individual merely for being gay or transgender violates Title VII. Pp. 654–683.

(a) Title VII makes it “unlawful . . . for an employer to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual . . . because of such individual’s race, color, religion, sex, or national origin.” 42 U.S.C. §2000e–2(a)(1). The straightforward application of Title VII’s terms interpreted in accord with their ordinary public meaning at the time of their enactment resolves these cases. Pp. 654–662.

(1) The parties concede that the term “sex” in 1964 referred to the biological distinctions between male and female. And “the ordinary meaning of ‘because of’ is ‘by reason of’ or ‘on account of,’” *University of Tex. Southwestern Medical Center v. Nassar*, 570 U.S. 338, 350. That term incorporates the but-for causation standard, *id.*, at 346, 360,

*Together with No. 17–1623, *Altitude Express, Inc., et al. v. Zarda et al.*, as *Co-Independent Executors of the Estate of Zarda*, on certiorari to the United States Court of Appeals for the Second Circuit, and No. 18–107, *R. G. & G. R. Harris Funeral Homes, Inc. v. Equal Employment Opportunity Commission et al.*, on certiorari to the United States Court of Appeals for the Sixth Circuit.

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which, for Title VII, means that a defendant cannot avoid liability just by citing some *other* factor that contributed to its challenged employment action. The term “discriminate” meant “[t]o make a difference in treatment or favor (of one as compared with others).” Webster’s New International Dictionary 745. In so-called “disparate treatment” cases, this Court has held that the difference in treatment based on sex must be intentional. See, e. g., *Watson v. Fort Worth Bank & Trust*, 487 U. S. 977, 986. And the statute’s repeated use of the term “individual” means that the focus is on “[a] particular being as distinguished from a class.” Webster’s New International Dictionary, at 1267. Pp. 655–659.

(2) These terms generate the following rule: An employer violates Title VII when it intentionally fires an individual employee based in part on sex. It makes no difference if other factors besides the plaintiff’s sex contributed to the decision or that the employer treated women as a group the same when compared to men as a group. A statutory violation occurs if an employer intentionally relies in part on an individual employee’s sex when deciding to discharge the employee. Because discrimination on the basis of homosexuality or transgender status requires an employer to intentionally treat individual employees differently because of their sex, an employer who intentionally penalizes an employee for being homosexual or transgender also violates Title VII. There is no escaping the role intent plays; Just as sex is necessarily a but-for cause when an employer discriminates against homosexual or transgender employees, an employer who discriminates on these grounds inescapably intends to rely on sex in its decisionmaking. Pp. 659–662.

(b) Three leading precedents confirm what the statute’s plain terms suggest. In *Phillips v. Martin Marietta Corp.*, 400 U. S. 542, a company was held to have violated Title VII by refusing to hire women with young children, despite the fact that the discrimination also depended on being a parent of young children and the fact that the company favored hiring women over men. In *Los Angeles Dept. of Water and Power v. Manhart*, 435 U. S. 702, an employer’s policy of requiring women to make larger pension fund contributions than men because women tend to live longer was held to violate Title VII, notwithstanding the policy’s evenhandedness between men and women as groups. And in *Oncale v. Sundowner Offshore Services, Inc.*, 523 U. S. 75, a male plaintiff alleged a triable Title VII claim for sexual harassment by co-workers who were members of the same sex.

The lessons these cases hold are instructive here. First, it is irrelevant what an employer might call its discriminatory practice, how others might label it, or what else might motivate it. In *Manhart*, the employer might have called its rule a “life expectancy” adjustment, and in

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Phillips, the employer could have accurately spoken of its policy as one based on “motherhood.” But such labels and additional intentions or motivations did not make a difference there, and they cannot make a difference here. When an employer fires an employee for being homosexual or transgender, it necessarily intentionally discriminates against that individual in part because of sex. Second, the plaintiff’s sex need not be the sole or primary cause of the employer’s adverse action. In *Phillips*, *Manhart*, and *Oncale*, the employer easily could have pointed to some other, nonprotected trait and insisted it was the more important factor in the adverse employment outcome. Here, too, it is of no significance if another factor, such as the plaintiff’s attraction to the same sex or presentation as a different sex from the one assigned at birth, might also be at work, or even play a more important role in the employer’s decision. Finally, an employer cannot escape liability by demonstrating that it treats males and females comparably as groups. *Manhart* is instructive here. An employer who intentionally fires an individual homosexual or transgender employee in part because of that individual’s sex violates the law even if the employer is willing to subject all male and female homosexual or transgender employees to the same rule. Pp. 662–665.

(c) The employers do not dispute that they fired their employees for being homosexual or transgender. Rather, they contend that even intentional discrimination against employees based on their homosexual or transgender status is not a basis for Title VII liability. But their statutory text arguments have already been rejected by this Court’s precedents. And none of their other contentions about what they think the law was meant to do, or should do, allow for ignoring the law as it is. Pp. 665–682.

(1) The employers assert that it should make a difference that plaintiffs would likely respond in conversation that they were fired for being gay or transgender and not because of sex. But conversational conventions do not control Title VII’s legal analysis, which asks simply whether sex is a but-for cause. Nor is it a defense to insist that intentional discrimination based on homosexuality or transgender status is not intentional discrimination based on sex. An employer who discriminates against homosexual or transgender employees necessarily and intentionally applies sex-based rules. Nor does it make a difference that an employer could refuse to hire a gay or transgender individual without learning that person’s sex. By intentionally setting out a rule that makes hiring turn on sex, the employer violates the law, whatever he might know or not know about individual applicants. The employers also stress that homosexuality and transgender status are distinct concepts from sex, and that if Congress wanted to address these matters in Title VII, it would have referenced them specifically. But when Con-

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gress chooses not to include any exceptions to a broad rule, this Court applies the broad rule. Finally, the employers suggest that because the policies at issue have the same adverse consequences for men and women, a stricter causation test should apply. That argument unavoidably comes down to a suggestion that sex must be the sole or primary cause of an adverse employment action under Title VII, a suggestion at odds with the statute. Pp. 666–673.

(2) The employers contend that few in 1964 would have expected Title VII to apply to discrimination against homosexual and transgender persons. But legislative history has no bearing here, where no ambiguity exists about how Title VII's terms apply to the facts. See *Milner v. Department of Navy*, 562 U. S. 562, 574. While it is possible that a statutory term that means one thing today or in one context might have meant something else at the time of its adoption or might mean something different in another context, the employers do not seek to use historical sources to illustrate that the meaning of any of Title VII's language has changed since 1964 or that the statute's terms ordinarily carried some missed message. Instead, they seem to say when a new application is both unexpected and important, even if it is clearly commanded by existing law, the Court should merely point out the question, refer the subject back to Congress, and decline to enforce the law's plain terms in the meantime. This Court has long rejected that sort of reasoning. And the employers' new framing may only add new problems and leave the Court with more than a little law to overturn. Finally, the employers turn to naked policy appeals, suggesting that the Court proceed without the law's guidance to do what it thinks best. That is an invitation that no court should ever take up. Pp. 673–682.

No. 17–1618, 723 Fed. Appx. 964, reversed and remanded; No. 17–1623, 883 F. 3d 100, and No. 18–107, 884 F. 3d 560, affirmed.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. ALITO, J., filed a dissenting opinion, in which THOMAS, J., joined, *post*, p. 683. KAVANAUGH, J., filed a dissenting opinion, *post*, p. 780.

Pamela S. Karlan argued the cause for petitioner in No. 17–1618 and respondents in No. 17–1623. With her on the briefs in No. 17–1623 were *Gregory Antollino*, *Stephen Bergstein*, *Jeffrey L. Fisher*, *Brian H. Fletcher*, *Ria Tabacco Mar*, *James D. Esseks*, *David D. Cole*, and *Christopher Dunn*. On the briefs in No. 17–1618 were *Brian J. Sutherland* and *Thomas J. Mew IV*.

Counsel

Jeffrey M. Harris argued the cause for respondent in No. 17–1618 and petitioners in No. 17–1623. On the brief in No. 17–1618 were *Jack R. Hancock*, *William H. Buechner, Jr.*, and *Michael M. Hill*. On the brief in No. 17–1623 was *Saul D. Zabell*.

Solicitor General Francisco argued the cause for the United States as *amicus curiae* urging affirmance in No. 17–1618 and reversal in No. 17–1623. With him on the brief were *Assistant Attorneys General Hunt* and *Dreiband*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Sopan Joshi*, *Eric Treene*, *Charles W. Scarborough*, and *Stephanie R. Marcus*.

Mr. Cole argued the cause for respondent-intervenor *Aimee Stephens* in No. 18–107. With him on the briefs were *John A. Knight*, *Elizabeth O. Gill*, *Gabriel Arkles*, *Chase B. Strangio*, *Ms. Tabacco Mar*, *Mr. Esseks*, *Louise Melling*, *Jay D. Kaplan*, and *Daniel S. Korobkin*.

John J. Bursch argued the cause for petitioner in No. 18–107. With him on the brief were *Kristen K. Waggoner*, *David A. Cortman*, *James A. Campbell*, *Katherine L. Anderson*, *Jeana J. Hallock*, and *Joel J. Kirkpatrick*.

Solicitor General Francisco argued the cause for the federal respondent in No. 18–107. With him on the brief were *Assistant Attorneys General Hunt* and *Dreiband*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Johnathan C. Bond*, *Messrs. Treene* and *Scarborough*, and *Ms. Marcus*.[†]

[†]Briefs of *amici curiae* urging reversal in No. 17–1618 and affirmance in Nos. 17–1623 and 18–107 were filed for the State of Illinois et al. by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, and *Sarah A. Hunger*, *Kaitlyn N. Chenevert*, and *Jonathan J. Sheffield*, Assistant Attorneys General, and *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Anisha S. Dasgupta*, Deputy Solicitor General, and *Andrew W. Amend*, Senior Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Phil Weiser* of Colorado, *William Tong* of Connecticut, *Kathy Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii,

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JUSTICE GORSUCH delivered the opinion of the Court.

Sometimes small gestures can have unexpected consequences. Major initiatives practically guarantee them. In our time, few pieces of federal legislation rank in significance

Aaron M. Frey of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Gurbir S. Grewal* of New Jersey, *Hector H. Balderas* of New Mexico, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, *Mark R. Herring* of Virginia, and *Robert Ferguson* of Washington; for *Altria Group, Inc.*, by *Lauren R. Goldman*, *Scott A. Chesin*, *Murray R. Garnick*, *Andrew J. Pincus*, and *Nicole A. Saharsky*; for the American Bar Association by *Robert M. Carlson* and *Douglas Hallward-Driemeier*; for the American Federation of Labor and Congress of Industrial Organizations by *Harold C. Becker* and *Matthew J. Ginsburg*; for the American Medical Association et al. by *Scott B. Wilkens*; for the American Psychological Association et al. by *Jessica Ring Amunson*, *Emily L. Chapuis*, *Aaron M. Panner*, *Deanne M. Ottaviano*, and *Nathalie F. P. Gilfoyle*; for Anti-discrimination Scholars by *Mitchell P. Reich*, *Thomas P. Schmidt*, and *Brian Soucek*, *pro se*; for Business Organizations by *Lisa S. Blatt*; for Employment Discrimination Law Scholars by *Sasha Samberg-Champion*, *Joseph J. Wardenski*, and *Sachin S. Pandya* and *Marcia L. McCormick*, both *pro se*; for Former Executive Branch Officials and Leaders et al. by *Evan Wolfson*; for Georgia Equality by *Emmet J. Bondurant*; for GLBTQ Legal Advocates & Defenders et al. by *Alan E. Schoenfeld*, *Mary Bonauto*, *Christopher Stoll*, *Julie Wilensky*, and *Shannon Minter*; for Historians by *Chanakya A. Sethi* and *Rakesh N. Kilaru*; for Impact Fund et al. by *Lindsay Nako* and *David Nahmias*; for inter-ACT: Advocates for Intersex Youth et al. by *Jonah M. Knobler*; for Lambda Legal Defense and Education Fund, Inc., by *Karen L. Loewy*, *Omar Gonzalez-Pagan*, *Sharon M. McGowan*, and *Gregory R. Nevins*; for the Lawyers' Committee for Civil Rights Under Law et al. by *Daniel A. Rubens*, *Kristen Clarke*, *Jon Greenbaum*, *Dariely Rodriguez*, *Phylicia H. Hill*, *Vanita Gupta*, and *Michael Zubrensky*; for the Legal Aid Society by *Brian T. Burgess*, *Richard Blum*, and *Frederick H. Rein*; for Lesbian, Gay, Bisexual, Transgender, and Queer Members of the Legal Profession et al. by *Margaret Costello*; for Local Governments et al. by *Zachary W. Carter*, *Richard Dearing*, *Devin Slack*, *Michael N. Feuer*, *James P. Clark*, *Kathleen Kenealy*, *Blithe Smith Bock*, *Michael Walsh*, *Danielle L. Goldstein*, *Dennis J. Herrera*, *Jeremy M. Goldman*, *Jaime M. Huling Delaye*, *James R. Williams*, *Greta S. Hansen*, *Jeremy A. Avila*, *George McAndrews*, *William S. Kelly*, *G. Nicholas Herman*, *Mark A. Flessner*, *Christo-*

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with the Civil Rights Act of 1964. There, in Title VII, Congress outlawed discrimination in the workplace on the basis of race, color, religion, sex, or national origin. Today, we

*pher J. Caso, Kristin M. Bronson, Lawrence Garcia, Louis N. Rainone, Dave Williamson, F. Joseph Abood, Mary C. Wickham, Roger J. Desiderio, Susan L. Segal, Kathleen E. Gill, Mark Barber, Lyndsey M. Olson, Peter S. Holmes, Michael Jenkins, John M. Barr, Betsy Cavendish, Edward M. Pikula, Jordan B. Yeager, and William Fosbre; for Members of Congress by Peter T. Barbur; for the Modern Military Association of America et al. by James Moore III, Jonathan L. Marcus, John M. Nannes, and Peter Perkowski; for the Muslim Bar Association of New York et al. by Adeel A. Mangi and Mr. Knobler; for the National Education Association et al. by Jeffrey A. Lamken, Alice O'Brien, Eric A. Harrington, David Strom, Francisco M. Negrón, Jr., and Sonja Trainor; for the National LGBT Bar Association et al. by Sanford Jay Rosen and Michael S. Nunez; for the National Women's Law Center et al. by Erica C. Lai, Danielle C. Morello, Fatima Goss Graves, Emily Martin, and Sunu P. Chandy; for Philosophy Professors by Lisa Hogan and Esteban M. Morin; for the Presiding Bishop and President of the House of Deputies of the Episcopal Church et al. by Jeffrey S. Trachtman; for Service Employees International Union et al. by James M. Finberg, Barbara J. Chisholm, Nicole G. Berner, and Claire Prestel; for the Southern Poverty Law Center et al. by Melissa Arbus Sherry; for Statutory Interpretation and Equality Law Scholars by Elizabeth B. Wydra, Brianne J. Gorod, Ashwin Phatak, and Katie Eyer, *pro se*; for the Trevor Project et al. by Richard W. Smith and Douglas C. Dreier; for Wisconsin Advocacy Organizations by Jeffrey A. McIntyre; for the Women's and Children's Advocacy Project et al. by Wendy J. Murphy; for Walter Dellinger et al. by Joshua Matz and Laurence H. Tribe; for William N. Eskridge, Jr., et al. by Mr. Eskridge, *pro se*; for Kenneth B. Mehlman et al. by Roy T. Englert, Jr., and Laurie R. Rubenstein; for Brian Slocum et al. by Andrew Rhys Davies; and for 206 Businesses by Todd Anten, Kathleen M. Sullivan, Cynthia H. Hyndman, Robert S. Cohen, and Justin T. Reinheimer.*

Jeffrey T. Green and Patrick C. Bryant filed a brief of *amici curiae* urging reversal in No. 17–1618 and affirmance in No. 17–1623 for Scholars Who Study the LGB Population.

Briefs of *amici curiae* urging reversal in Nos. 17–1623 and 18–107 were filed for Ryan T. Anderson by Charles S. LiMandri, Paul M. Jonna, and Jeffrey M. Trissell; and for W. Burlette Carter by Ms. Carter, *pro se*.

Briefs of *amici curiae* urging reversal in No. 18–107 were filed for the Center for Arizona Policy by Aaron T. Martin and Cathi Herrod; for the

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must decide whether an employer can fire someone simply for being homosexual or transgender. The answer is clear. An employer who fires an individual for being homosexual

Center for Religious Expression by *Nathan W. Kellum*; for the Christian Employers Alliance by *Parker Douglas*; for Family Policy Groups by *Jonathan R. Whitehead*; for the Foundation for Moral Law by *Matthew J. Clark* and *John A. Eidsmoe*; for Free Speech Advocates by *Thomas P. Monaghan* and *Walter M. Weber*; for the Great Lakes Justice Center by *William Wagner*, *Erin Elizabeth Mersino*, and *Katherine L. Henry*; for the Independent Women's Forum et al. by *Anita Y. Milanovich*; for Judicial Watch, Inc., by *Robert D. Popper*; for Military Spouses United by *Arthur A. Schulcz, Sr.*; for National Medical and Policy Groups That Study Sex and Gender Identity by *Antony B. Kolenc*; for Public Advocate of the United States et al. by *William J. Olson*, *Herbert W. Titus*, *Jeremiah L. Morgan*, *Robert J. Olson*, *Joseph W. Miller*, *Gary G. Kreep*, and *J. Mark Brewer*; for Scholars of Family and Sexuality by *Dean R. Broyles*; for Scholars of Philosophy et al. by *David R. Langdon*; for the United States Conference of Catholic Bishops et al. by *Anthony R. Picarello, Jr.*, *Jeffrey Hunter Moon*, *Michael F. Moses*, and *Hillary E. Byrnes*; for Women's Liberation Front by *David Bookbinder*; for William J. Bennett by *Charles J. Cooper*, *David H. Thompson*, and *John D. Ohlendorf*; and for Walt Heyer et al. by *Gregory H. Teufel*.

Briefs of *amici curiae* urging affirmance in No. 17–1618 and reversal in Nos. 17–1623 and 18–107 were filed for the State of Tennessee et al. by *Herbert H. Slatery III*, Attorney General of Tennessee, *Andrée S. Blumstein*, Solicitor General, and *Sarah K. Campbell*, Associate Solicitor General, *Douglas J. Peterson*, Attorney General of Nebraska, and *David Bydalek*, Chief Deputy Attorney General, and *Ken Paxton*, Attorney General of Texas, *Kyle D. Hawkins*, Solicitor General, and *M. Stephen Pitt*, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Leslie Rutledge* of Arkansas, *Lawrence G. Wasden* of Idaho, *Jeff Landry* of Louisiana, *Eric S. Schmitt* of Missouri, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Jason R. Ravensborg* of South Dakota, and *Patrick Morrissey* of West Virginia; for Advocates for Faith and Freedom by *C. Thomas Ludden*; for the American Public Philosophy Institute by *David R. Upham*; for the Billy Graham Evangelistic Association et al. by *Frederick W. Claybrook, Jr.*, *Steven W. Fitschen*, *James A. Davids*, and *David A. Bruce*; for Business Organizations by *Sean P. Gates*; for the Council of Christian Colleges & Universities et al. by *R. Shawn Gunnarson*, *Steven M. Sandberg*, and *Heather E. Gunnarson*; for Defend My Pri-

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or transgender fires that person for traits or actions it would not have questioned in members of a different sex. Sex plays a necessary and undisguisable role in the decision, exactly what Title VII forbids.

vacy et al. by *Joel A. Ready*; for the First Liberty Institute by *Kelly J. Shackelford*, *Hiram S. Sasser III*, and *Stephanie N. Taub*; for the H. T. Hackney Co. by *Edward H. Trent*; for the Institute for Faith and Family et al. by *Deborah J. Dewart* and *B. Tyler Brooks*; for the National Association of Evangelicals et al. by *Alexander Dushku* and *Luke W. Goodrich*; for the National Organization for Marriage et al. by *John C. Eastman* and *Anthony T. Caso*; for the Religious Freedom Institute's Islam & Religious Freedom Action Team et al. by *Michael K. Whitehead*; and for David A. Robinson by *Mr. Robinson, pro se*.

William C. Duncan filed a brief of *amici curiae* urging affirmance in No. 17–1618 and reversal in No. 17–1623 for the Marriage Law Foundation.

Briefs of *amici curiae* urging affirmance in No. 18–107 were filed for Anti-Sexual Assault Organizations et al. by *Walter Dellinger*; for Law & History Professors by *Craig J. Konnoth*, *Kevin Costello*, *Jack Harrison*, and *Kyle Vette*, all *pro se*, and *Andrew H. DeVoogd*, *Susan M. Finegan*, and *Donald C. Davis*; for Scholars Who Study the Transgender Population by *David R. Carpenter*; for the Transgender Law Center et al. by *Julia R. Lissner*, *Megan M. Kokontis*, *Melissa L. Cizmorris*, *Andrea Chinyere Ezie*, *Lynly Egyes*, and *Dale Melchert*; for the Transgender Legal Defense & Education Fund et al. by *Howard S. Zelbo* and *Carmine D. Boccuzzi, Jr.*; for Women Business Owners et al. by *Thomas Brejcha* and *Joan M. Mannix*; and for Samuel R. Bagenstos et al. by *Daniel Woofter*, *Kevin K. Russell*, *Eric F. Citron*, *Erica Oleszczuk Evans*, *Martin S. Lederman*, *Mr. Bagenstos*, *Leah M. Litman*, *Margo Schlanger*, and *Michael C. Dorf*, all *pro se*.

Briefs of *amici curiae* were filed in all cases for Liberty Counsel by *Mathew D. Staver*, *Anita L. Staver*, *Horatio G. Mihet*, *Roger K. Gannam*, and *Rena M. Lindevaldsen*; for Members of Congress by *Timothy J. Newton* and *Kenneth W. Starr*; for the New Civil Liberties Alliance by *Jonathan F. Mitchell* and *Aditya Dynar*; and for Women CEOs et al. by *Suzanne B. Goldberg*, *Richard M. Segal*, and *Cynthia Cook Robertson*.

Briefs of *amici curiae* in Nos. 17–1618 and 17–1623 were filed for the Foundation for Moral Law by *Mr. Eidsmoe*; and for Karl Olson by *Janine M. Brookner*.

Randall L. Wenger, *Jeremy L. Samek*, and *Curtis M. Schube* filed a brief of *amicus curiae* for Paul R. McHugh in No. 18–107.